

		79.) As such, Plaintiff seeks a judicial determination of rights and duties with respect to Plaintiff's cash property. This is sufficient at the pleading stage. Moreover, redundancy of a cause of action is not grounds for sustaining a demurrer. (<i>See Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 889-890.) The Court OVERRULES the demurrer to the seventh cause of action. <u>Allegations as to Defendant LaVie Home Shopping Corporation</u> Plaintiff brings the second through sixth causes of action against LaVie Home Shopping Corporation. Defendants contend Plaintiff fails to adequately allege what legal or operational role LaVie Home Shopping Corporation played in the alleged transactions. Plaintiff alleges the complaint alleges all defendants were the agents, employees, and alter egos of one another. While a plaintiff is "required to allege only 'ultimate rather than evidentiary facts'" to support an alter ego theory (<i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 236), Plaintiff's allegation "each of the Defendants was the employee, agent, servant of each of the other defendants" (Compl. ¶ 6) is insufficient. Additionally, while Plaintiff contends the complaint alleges Plaintiff's contribution may have been commingled with Defendants' personal accounts and/or their other entities, including Lavie Home Shopping Corporation, those allegations do not sufficiently allege specific actions taken by Lavie Home Shopping Corporation to support the various causes of action. The Court SUSTAINS the demurrer with respect to claims asserted against LaVie Home Shopping Corporation.
10.	ARA, INC. VS. THE CUT AND SEW CO., INC. 2026-01546893	DEMURRER TO ANSWER The Demurrer to Answer by Plaintiff ARA, Inc. dba Lone Oak Payroll is OVERRULED. Plaintiff contends that twelve of Defendant's affirmative defenses are unsupported by sufficient facts.

		When a defendant bears the burden of proving a defense at trial, it is a “new matter” or “affirmative defense” that must be specially pleaded in the answer. (See <i>California Academy of Sciences v. County of Fresno</i> (1987) 192 Cal.App.3d 1436, 1442 [failure to plead equitable defenses waived those defenses].) A defendant raising such new matters must allege ultimate facts sufficient to prove the defense with the same level of detail that a plaintiff is required to allege ultimate facts to support a cause of action in a complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384; 5 Witkin, Cal. Proc. 5th (2008) Pleading, § 1082, p. 515.) “Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. [Citation.]” (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 732.) “There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” (<i>Id.</i> at 733.) Defendant alleges various defenses without stating additional facts. Defendant asserts that any vagueness in its affirmative defenses is due to Plaintiff’s failure to attach the operative contract to its complaint, and Defendant was not a signatory and is therefore unaware of the contract’s specific terms. At the pleading stage, Defendant has adequately asserted the disputed affirmative defenses which respond to the allegations in Plaintiff’s complaint sufficient put Plaintiff on notice to conduct further discovery into their factual bases. Therefore, the demurrer is overruled.
11.	AMER VS. SAFETY PROTECTION SECURITY, LLC. 2025-01530924	1. DEMURRER TO COMPLAINT 2. MOTION TO STRIKE COMPLAINT Defendant The Islamic Society of Orange County’s Demurrer and Motion to Strike Portions of the Complaint are CONTINUED to 10/13/26 at 9:00 a.m., in Dept. C32. The parties/counsel have not engaged in sufficient attempts to meet and confer. If, upon review of the parties’ declarations, “a court learns no meet and confer has taken place, or <i>concludes further conferences between counsel would likely be productive</i>, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the